City of Gainesville, Florida
Business Impact Estimate

This form should be included in the agenda packet for the item under which the proposed ordinance is to be considered and must be posted on the City of Gainesville's website by the time notice of the proposed ordinance is published.

Proposed ordinance's title/reference: **Ordinance No. 2026-165**

An ordinance of the City of Gainesville, Florida; proposing an amendment to Article II, section 2.04 titled "Election and terms" of the Charter Laws of the City of Gainesville; providing for submission of the charter amendment to the voters for approval or disapproval at the November 3, 2026 election; approving the question to be placed on the ballot; providing that this charter amendment shall become effective if approved by the voters; providing directions to the codifier; providing directions to the city clerk; providing a severability clause; providing a repealing clause; and providing an immediate effective date.

This Business Impact Estimate is provided in accordance with section 166.041(4), Florida Statutes. If one or more boxes are checked below, this means the City of Gainesville is of the view that a business impact estimate is not required by state law[1] for the proposed ordinance, but the City of Gainesville is, nevertheless, providing this Business Impact Estimate as a courtesy and to avoid any procedural issues that could impact the enactment of the proposed ordinance. This Business Impact Estimate may be revised following its initial posting.

- ☐ The proposed ordinance is required for compliance with Federal or State law or regulation;
- ☐ The proposed ordinance relates to the issuance or refinancing of debt;
- ☐ The proposed ordinance relates to the adoption of budgets or budget amendments, including revenue sources necessary to fund the budget;
- ☐ The proposed ordinance is required to implement a contract or an agreement, including, but not limited to, any Federal, State, local, or private grant or other financial assistance accepted by the municipal government;
- ☐ The proposed ordinance is an emergency ordinance;
- ☐ The ordinance relates to procurement; or
- ☐ The proposed ordinance is enacted to implement the following:
    a. Development orders and development permits, as those terms are defined in section 163.3164, F.S., and development agreements, as authorized under sections 163.3220-163.3243, F.S.;
    b. Comprehensive Plan Amendments and land development regulation amendments initiated by an application by a private party other than the City;
    c. Sections 190.005 and 190.046, Florida Statutes, regarding community development districts;

[1] See Section 166.041(4)(c), Florida Statutes.

d. Section 553.73, Florida Statutes, relating to the Florida Building Code; or
e. Section 633.202, Florida Statutes, relating to the Florida Fire Prevention Code.

In accordance with the provisions of controlling law, even notwithstanding the fact that an exemption noted above may apply, the City of Gainesville hereby publishes the following information:

1. Summary of the proposed ordinance (must include a statement of the public purpose, such as serving the public health, safety, morals and welfare):

Ordinance No. 2026-165 would submit a ballot referendum to the electors of the City of Gainesville to amend the City Charter provision regarding the filling of vacancies in office for the Mayor and City Commission. The proposed amendment would eliminate the filling of vacancies of six months or more by special election and provide for vacancies in office to be filled through appointment by the remaining Commission members until the next practicable biennial regular election. The ordinance is authorized by Florida Statutes section 166.031(1) and City of Gainesville Charter Article V, section 5.01, and adoption of the ordinance requires an affirmative four-fifths vote of the membership of the City Commission. The purpose of the ordinance is to amend the manner in which vacancies in office for the Mayor and City Commission are filled in the interests of cost and resource efficiencies.

2. An estimate of the direct economic impact of the proposed ordinance on private, for-profit businesses in the City of Gainesville, if any:
(a) An estimate of direct compliance costs that businesses may reasonably incur;
(b) Any new charge or fee imposed by the proposed ordinance or for which businesses will be financially responsible; and
(c) An estimate of the City of Gainesville's regulatory costs, including estimated revenues from any new charges or fees to cover such costs.

There is no direct compliance cost that businesses may reasonably incur due to the proposed ordinance.
There is no new charge or fee imposed by the proposed ordinance.
There is no anticipated regulatory cost associated with the proposed ordinance.

3. Good faith estimate of the number of businesses likely to be impacted by the proposed ordinance:

None

4. Additional information the governing body deems useful (if any):

This proposed ordinance would submit to the electors of the City of Gainesville a proposed amendment to the City Charter, and place a referendum on the general election ballot. Per Florida Statutes section 166.031(1) and City of Gainesville Charter Article V, section 5.01, an adoption of an amendment to the City of Gainesville Charter would require an affirmative vote of a majority of the votes cast by the electors voting in a referendum upon such proposed amendment.